

The Scheduled Areas (Assimilation of Laws) Act, 1953

(ACT NO. 16 OF 1953)

(*As on the 15th January, 2026*)

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LIST OF ABBREVIATIONS USED

Cl.,cls.	*for*	Clause, clauses.
Ins.	,,	Inserted.
Notifn.	,,	Notification.
S., ss.	,,	Section, sections
Sch.	,,	Schedule.
Subs.	,,	Substituted
w.e.f.	,,	with effect from.

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THE SCHEDULED AREAS (ASSIMILATION OF LAWS) ACT, 1953

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ARRANGEMENT OF SECTIONS

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SECTIONS

1. Short title and commencement.
2. Definitions.
3. Assimilation of laws.
4. Transitional provisions.
5. Savings.
6. Provision for removal of difficulties.

THE SCHEDULE.

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THE SCHEDULED AREAS (ASSIMILATION OF LAWS) ACT, 1953

ACT NO. 16 OF 1953

[6*th May*, 1953.]

An Act to assimilate certain laws in force in the scheduled areas to the laws in force in the districts of Nowgong and Sibsagar in the State of Assam.

BE it enacted by Parliament as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Scheduled Areas (Assimilation of Laws) Act, 1953.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act,—

(*a*) "appointed day" means the date appointed under sub-section (*2*) of section 1 for the coming into force of this Act;

(*b*) "law" means so much of any Act, Ordinance, Regulation, rule, order or bye-law as relates to any of the matters enumerated in Lists I and III in the Seventh Schedule to the Constitution.

(*c*) "scheduled areas" mean the areas specified in the Schedule.

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3. Assimilation of laws.—(*1*) All laws which immediately before the appointed day extend to, or are in force in, the scheduled areas shall on that day cease to be in force in the scheduled areas except as respects things done or omitted to be done before that day, and for the removal of doubts, it is hereby declared that section 6 of the General Clauses Act, 1897 (10 of 1897) shall apply in relation to such cesser as it applies in relation to the repeal of an enactment by a Central Act.

(*2*) All laws which immediately before the appointed day extend to, or are in force in, the district of Nowgong in the State of Assam shall as from that day extend to, or, as the case may be, come into force in, the areas specified in paragraph 1 of the Schedule.

(*3*) All laws which immediately before the appointed day extend to, or are in force in, the district of Sibsagar in the State of Assam shall as from that day extend to, or, as the case may be, come into force in, the areas specified in paragraph 2 of the Schedule.

4. Transitional provisions.—Notwithstanding anything contained in section 3, the Central Government or the Government of the State of Assam may, by order, direct that during such period, not exceeding twelve months from the appointed day, as may be specified in the order, any law which immediately before the appointed day was in force in the scheduled areas, shall be deemed to have continued to be in force therein or any specified part thereof, and may further likewise direct that any law which would have extended to, or come into force in, the scheduled areas on the appointed day, shall not be deemed to have extended thereto or come into force therein or any specified part thereof.

5. Savings.—Notwithstanding anything contained in section 3, all suits, cases and other legal proceedings between parties all of whom belong to the Scheduled Tribes specified in item 2 of Part I—Assam, of the Schedule annexed to the Constitution (Scheduled Tribes) Order, 1950 or such other tribe or tribes, as may be specified in this behalf, shall be tried and continue to be tried under the Rules for

1. 1st September, 1953, *vide* notifin. No. S. R.O. 1624, dated 26th August, 1953, *see* Gazette of India, Part II, s. 3.

the Administration of Justice and Police in the Sibsagar and Nowgong Mikir Hills Tracts as if this Act had not been passed.

6. Provision for removal of difficulties.—If any difficulty arises in relation to the transition under section 3 from one law or group of laws to another law or group of laws, the Central Government may, by order notified in the Official Gazette, make such provision as it considers necessary for the removal of the difficulty.

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[*See* section 2(*c*)]

1. (*a*) Portion of Gobha Mauza that was originally in the Mikir Hills Tracts, including Sonaikuchi Reserved Forest.

(*b*) Kholahat Reserved Forest.

(*c*) Portion of Lumding Reserved Forest falling in Lanka Mauza in original Mikir Hills Tracts.

(*d*) Portion of Lumding Mauza west of the line described below:—

From the point where the eastern boundary of Namati Mauza meets the Kaki Jan, the line runs up the Kaki Jan to its source; thence in a south easterly direction in a straight line across the hill ridges to the confluence of Panpri stream with the Lanka Jan; thence up the Lanka Jan to its source; thence in a southerly direction along the eastern boundary of the Lumding Reserved Forest to the junction of Lankanasang Nadi with the Bara Langpher river, thence in a straight line due south till that line meets the southern boundary of the Lumding Mauza.

(*e*) Dabaka Reserved Forest.

(*f*) Suang Reserved Forest.

(*g*) Diju Valley South Reserved Forest.

(*h*) Bagser Reserved Forest.

2. (*a*) Panbari Reserved Forest.

(*b*) Upper Daigurung Reserved Forest.

(*c*) Lower Daigurung Reserved Forest.

(*d*) Village lands of Ghatiani Pathar, Dokhara Pathar and Murphuloni of Mauza Marangi in original Mikir Hills Tracts.

(*e*) Portion of Barpathar Mauza east of Dhansiri river and north-east of Garampani Kaliani Road.

(*f*) Portion of Ghiladhari Mauza in original Mikir Hills Tracts.

(*g*) Portion of Sarupathar Mauza east of Dhansiri river.

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STATEMENT OF OBJECTS AND REASONS

Certain areas of the Mikir Hills, which is an autonomous district in Assam specified in Part A of the Table appended to paragraph 20 of the Sixth Schedule to the Constitution, have been excluded from that district and incorporated in the adjoining plain districts of Nowgong and Sibsagar. But under article 372 (1) of the Constitution, all the Acts, Rules, Regulations, etc., which applied to these areas *proprie vigore* or were specifically applied thereto before the commencement of the Constitution with modifications under the Scheduled District Act, 1874, or under section 92 of the Government of India Act, 1935, are in force and will continue to be in force in these areas until altered or repealed. In order to administer these areas under the normal laws in force in the rest of State of Assam, it is necessary for the appropriate legislature to pass legislation repealing the laws now in force in these areas and applying to them all such laws as are in force in the respective districts in which they have been incorporated. The Government of Assam have already draw up a Bill to extend to those areas the laws pertaining to matters in the State List in the Seventh Schedule to the Constitution. The object of this Bill is to make provision for the extension to these areas of the laws pertaining to the Union and Concurrent Lists.

NEW DELHI: K.N. KATJU.
The 14*th March*, 1953.

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